

Stereo H.C.J.D.A.38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

FAO No. 242 of 2010

Abdul Aziz & 2 others

Versus

Ch. Asghar Ali

JUDGMENT

Date of hearing:	02.05.2019.
Appellants by	Mr. Muhammad Akhtar Rana, Advocate.
Respondent by	Malik Muhammad Imran Joiya, Advocate.

Through this First Appeal against Order, the appellants have called in question the order dated 17.04.2010 (**‘Impugned order’**) passed by learned Addl. District Judge, Sargodha (**‘Appellate Court’**), whereby by allowing the application under Section 152 of the Code of Civil Procedure, 1908 (**“CPC”**) filed by the respondent, the learned Judge corrected the decree sheet dated 15.05.1995, which was earlier prepared by the appellate Court and included relief for delivery of possession in the same in terms of its judgment dated 15.05.1995.

2. Brief facts of the case are that Ch. Asghar Ali, the plaintiff/respondent (**‘respondent’**) filed a suit for declaration against the appellants and one, Muhammad Salim, seeking relief the he be declared owner of the suit property and transfer mutations in favour of appellants be set-aside, by claiming that he had purchased the land/plot No.16 measuring 10 Marlas 30 Sq. ft. through registered sale deed dated 14.03.1978 from its owner Muhammad Salim and mutation No. 357 dated 13.07.1978 had been sanctioned in his favour and the

possession of the said plot was also handed over to him. Subsequently, it transpired that the said property despite being owned by the respondent had been sold by said Muhammad Saleem alongwith his own property to Khaliq Dad/appellant No. 3, who had further sold the same in favour of Abdul Aziz/appellant No.1, who further transferred the same to Saqlain Farooq/appellant No.2 through impugned mutations, which mutations are liable to be set-aside. The learned trial court on 10.02.1994 decreed the said suit in favour of the respondent and mutation No.3453 entered in the revenue record in favour of appellant No.2 was cancelled by declaring the same as null and void. The learned Addl. District Judge, Sargodha, vide findings recorded in paragraph No. 16 of the judgment dated 15.05.1995 modified the judgment and decree passed by the learned trial court and granted relief of possession of the suit property in favour of the respondent. However, while preparing the decree sheet the portion of the relief of possession was somehow not included therein. The appellants challenged the said judgment and decree by filing civil revision No. 1341 of 1995 before this Court, which was dismissed on 13.10.2003 by observing that court under section 115 CPC had not got jurisdiction to interfere in duly and properly recorded concurrent findings of fact and CPLA No.3042 of 2003 filed there-against was also dismissed on 06.08.2008 by the august Supreme Court of Pakistan and it has been apprised during arguments that review petition filed there-against has also been dismissed, consequently findings of appellate court were upheld. During execution proceedings when it transpired that relief of possession has not been included in the decree sheet, the respondent on 30.09.2008 filed an application with the appellate court under Section 152 of CPC for correction of the decree sheet dated 15.05.1995 prepared by it, which application was allowed vide order dated 17.04.2010 and the decree sheet was ordered to be corrected

accordingly. Through this appeal the order dated 17.04.2010 has been called in question by the appellants.

3. The learned counsel for the appellants has argued that the impugned order is against the facts of the case and law on the subject and is liable to be set aside. On the contrary the respondent has defendant the said order by claiming the same to be in accordance with law.

4. The parties have been heard and the record has been perused with the assistance of learned counsel for the parties. With the consent of the parties this appeal is being heard and decided as an admitted case and the arguments addressed by both the parties have been attended to in detail in the paragraphs that follow.

5. It is pertinent to mention here that the instant dispute has arisen from the fact that in the earlier round of litigation when the judgment dated 15.05.1995 was passed by the appellate court it had modified the decree of the trial court and also granted further relief of possession, however, the decree sheet prepared by the said court omitted to mention that the said relief has also been allowed to the respondent and subsequently the said relief has been ordered to be included in the decree sheet by the impugned order passed on 17.04.2010 after a time lapse of approximately 15 years.

6. The moot point in this case is that whether in the given circumstances of the case, the appellate court, through the impugned order passed in exercise of jurisdiction vested under section 152 of CPC, was legally empowered and justified to amend the decree sheet that has previously been prepared.

7. It is claimed by the appellants that the decree sheet prepared by the appellate court had attained finality in earlier round of litigation as the same had been upheld up to the Honourable Supreme Court of Pakistan hence, the appellate court in exercise of powers vested in the

said court under section 152 of CPC at a belated stage was not empowered to subsequently amend the same through the impugned order. On the contrary, the claim of the respondent is that the decree sheet previously prepared was not in conformity with the judgment passed by the appellate court, which amounted to erroneous exercise of jurisdiction vested in the court and to rectify the said mistake the court has rightly amended the decree sheet.

8. In the paragraph No. 16 of the judgment dated 15.05.1995, the appellate court observed as under:

“Before parting with this judgment, I also allow prayer for possession of the disputed property, because plaintiff is not at present in possession of the disputed property. Therefore, he can take possession through the execution proceedings, as he has also sought any other relief which is considered to be competent by the court. I consider that plaintiff has also prayed for possession, hence this prayer is also allowed.”

Although the appellate Court in afore-referred paragraph of the judgment allowed the relief of possession of property to the respondent, the said relief was somehow not included in the decree sheet prepared by the court. This defect was not noted till the matter had gone through the stages of civil revision before this Court and its decision before the Honourable Supreme Court. Subsequently, an application under section 152 of CPC for correction of decree sheet was filed resulting into its amendment/correction.

9. The nexus between ‘judgment’ and ‘decree’ becomes clear by reference to the definitions of the same provided in the CPC. Judgment is defined in Section 2(9) of CPC reproduced below as the statement given by the Judge of the grounds of decree or order.

“Section 2(9). ‘Judgment’ means statement given by the Judge of the grounds of decree or order.”

Decree is defined in section 2(2) of CPC reproduced below as formal expression of an adjudication by the Court conclusively determining the rights of the parties with regard to matter in controversy.

“Section 2(2). ‘Decree’ means the formal expression of an adjudication which, so far as regards the Court expressing it, conclusively determines the rights of the parties with regard to all or any of the matters in controversy in the suit and may be either preliminary or final. It shall be deemed to include the rejection of a plaint the determination of any question within Section 144, and an order under Rule 60, 98, 99, 101 or 103 of Order XXI but shall not include-

- (a) any adjudication from which an appeal lies as an appeal from an order, or*
- (b) any order for dismissal for default.”*

By placing both the afore-referred definitions in juxtaposition, it transpires that the judgment is the statement given by the judge relating to the grounds resulting in the decree passed by the Court and decree sheet is drawn in accordance with the said statement by the Court to express the conclusive determination of rights of the litigating parties, relating to the matter in controversy. The said statement of the judge not only provides the reasons for the decision, it also conclusively determines the rights of the parties and the decree sheet prepared as a result is its formal expression.

10. This position is further clarified by section 33 of CPC, which provides that the decree was required to follow the judgment and Rules 6 & 7 of Order XX of CPC that provide for Contents and Date of decree, hence reference to the said section and rules is also relevant for decision of this appeal.

The wording of section 33 at the time of passing the judgment and decree was as follows:

“Section 33. Judgment and decree. The Court, after the case has been heard, shall pronounce judgment, and on such judgment decree shall follow.”

(emphasis supplied)

The aforesaid section 33 was substituted by Code of Civil Procedure (Punjab) Amendment Act, XIV of 2018 dated 20.03.2018 and the amended section is reproduced below:

“Section 33. Judgment and decree. *The Court, after the case has been heard, shall pronounce judgment maximum within fifteen days and on such judgment a decree shall follow simultaneously.”*

(emphasis supplied)

The Rules 6 and 7 of Order XX of the CPC are reproduced below:

“Rule 6. Contents of decree. *(1) The decree shall agree with judgment; it shall contain the number of the suit, the names and description of the parties, and particulars of the claim, and shall specify clearly the relief granted or other determination of the suit.*

(1-A) -----

(2) -----

(3) -----”

(emphasis supplied)

“Rule 7. Date of decree. *The decree shall bear date the day on which judgment was pronounced and when the judge has satisfied himself that the decree has been drawn up in accordance with the judgment, he shall sign this decree.”*

(emphasis supplied)

Section 33 of CPC, both before and after the amendment provides that the decree had to follow the judgment. The Rule 6 of Order XX of CPC provides that the decree sheet shall agree with the judgment and it is required to include number of the suit, the names and description of the parties, particulars of the claim, and clear specification of the relief granted or other determination of the suit. The Rule 7 of Order XX of CPC provides that the decree shall bear the date the day on which judgment was pronounced with and additional condition that the judge before signing the decree has to satisfy himself that the decree has been drawn up in accordance with the judgement. The word ‘shall’ used in phrases ‘on such judgment decree

shall follow' used in section 33 and 'decree shall agree with the judgment' used in Rule 6 of the Order XX of CPC clearly mean that it was the duty of the Court that decree sheet is drawn up in conformity with the judgment passed by the Court, which duty is to be performed with due diligence, as the mandate of rule 7 supra makes it imperative for the Judge, before signing the same, to satisfy himself through application of judicious mind that the decree has been drawn up in accordance with the judgment.

11. The said aspect of the matter came into consideration in various judgments of superior courts, some of which are reproduced below as the same would further clarify the situation:

In the case titled **Mst. Mumtaz Begum versus Said Zaman and 11 others (1993 CLC 1202)**, the Lahore High Court observed as under:

“Failure of the Court to draw up a formal decree containing its essentials as required by mandatory provisions in Section 33 of Civil Procedure Code read with Order XX, rule 6 ibid will not deprive a party of his right of appeal. It is open to the party to apply to the Court to prepare proper decree sheet. Even if the party fails to so apply, the appeal could not be dismissed as incompetent. Defect was not noticed at the limine stage. It was discovered much later at the time of hearing of argument on merits. It is well-settled that a party cannot be penalized for the act or neglect of the Court, or, its officials. None can deny that it was the duty of the court to prepare a proper and complete decree-sheet in lines with its judgment. If it fails to perform its duty, was it fair to punish the party for default of the Court. In the circumstances, lower appellate Court itself ought to have required the trial Court to prepare correct decree-sheet and called upon the appellant to file its certified copy in court for fulfilling and complying with the mandatory requirements of Rule 1, Order XLI of Civil Procedure Code. The poor appellant had not hand in the mistake of the trial Court and yet she was punished by the appellate Court. I would thus accept the appeal, set aside the impugned order of Additional District Judge, Gujrat and direct rehearing of the appeal and its decision afresh on merits by the District Judge, Gujrat after rectification of the error in the manner indicated above.”

(emphasis supplied)

In the case titled **Messrs Lasbella Industrial Estate Development Authority, Hub through Managing Director and another versus Messrs Prism Printer (Pvt.) Ltd. through Director (PLD 2011 Quetta 48)**, the Quetta High Court while referring to section 33 and Rules 6, 7 & 8 of Order XX of CPC, observed as under:

“Keeping in view the above mentioned Sections and Rules, the decree shall follow the judgment, while the decree not only contains number allotted to the suit, but complete names and description of the parties with particulars of claim, and also relief clearly specified therein. Above all the decree shall agree with the judgment.....”

In the case titled **Dilmeer versus Rajab Ali and others (2003 MLD 484)**, the Lahore High Court while referring to Rule 6 of Order XX of CPC has held that the decree must agree with the judgment.

In the case titled **Sh. Muhammad Sharif Uppal versus Sh. Akbar Hussain and others (PLD 1990 Lah 229)**, the Lahore High Court observed as under:

“22. Learned counsel for the plaintiffs/appellants in RSA No. 143 of 1985 complained that the learned trial Court granted decree to the plaintiffs as is manifest from the judgment dated 1-11-1983 for rendition of accounts of the income of the said plots measuring 2 kanals 19 marlas and 17 marlas as also income of plot measuring 6 kanals 4 marlas, income of House no. D/753 and a portion of House No. D/13 but the decree which was prepared by the trial Court was wrongly described as decree for partition only. He argued that the learned lower appellate Court illegally declined the prayer of the appellant that the decree be amended accordingly on the erroneous assumption that the appellants were required either to file appeal or cross-objections. He argued that no appeal or cross-objections were required to be filed. The argument has considerable force. The learned trial Court in the judgment dated 1-11-1983 held that Muhammad Sharif the defendant was the accounting party and that the plaintiffs were entitled to recover their share of income of plots measuring 2 kanals 19 marlas, plot measuring 17 marlas (not of the construction raised on both of them by the

defendants) and also income of plot measuring 6 kanals 4 marlas, House No. D/753, and a portion of House No. D/13 for which the defendant was liable to render accounts. To this extent decree for rendition of account and recovery of their share of income was granted to the plaintiffs. It appears that while preparing the decree in pursuance to this judgment this part of the relief was not mentioned therein. It is mandatory requirement of Order 20 Rule 6 C.P.C. that the decree should agree with the judgment. The rule also provides that the decree shall specify clearly the relief granted. It was, therefore, a case where the Court failed to prepare the decree in accordance with the judgment as the relief granted to the plaintiffs regarding renditions of account and recovery of their share of income as stated above was not incorporated in the decree. It was therefore, legal, obligation of every Court where the matter was pending and for that matter the learned lower appellate Court to have passed an order for the amendment of the decree accordingly. The decree passed by the learned trial Court is hereby ordered to be modified/amended accordingly.”
(emphasis supplied)

12. Furthermore, section 33 of the CPC provides that the decree ‘shall’ follow the judgment and rule 6 of Order XX CPC provides that decree ‘shall’ agree with the judgment. Where a provision uses the word ‘shall’ and requires an authority to do something in a particular manner, it is deemed to be mandatory as laid down by the Supreme Court in **The Collector of Sales Tax Gujranwala and others vs. Messrs Super Asia Mohammad Din and Sons and others** (2017 SCMR 1427), wherein it has been laid down that word ‘shall’ was to be construed in its ordinary grammatical meaning and normally the use of word ‘shall’ by the legislature branded a provision as mandatory, especially when an authority was required to do something in a particular manner. Ultimate test to determine whether a provision was mandatory or directory was that of ascertaining the legislative intent. While the use of word ‘shall’ was not the sole factor which determined the mandatory or directory nature of a provision, it was certainly one of the indicators of legislative intent. Other factors

included the presence of penal consequences in case of non-compliance, but the clearest indicator was the object and purpose of the statute and the provision in question. Court was duty bound to garner the real intent of the legislature or expressed in the law itself.

13. The perusal of the afore-referred case laws and provisions of law cited above make it abundantly clear that it is a mandatory provision of law that the decree should agree with the Judgment and has to express what is determined in the judgment. Therefore, by not drawing decree sheet in accordance with the judgment, the court had not properly exercised the jurisdiction vested in it as this omission to prepare decree that agreed with the judgment was against the principle of law, which provides that where a law required an act to be done in a particular manner it had to be done in that manner alone and such dictate of law could not be termed a mere technicality and if done otherwise it would be non-compliance of the legislative intent.

Reliance is place on Shahida Bibi and others vs. Habib Bank Limited and others (PLD 2016 SC 995), Muhammad Anwar and others vs. Mst. Ilyas Begum and others (PLD 2013 SC 255) and Zia ur Rehman vs. Syed Ahmad Hussain (2014 SCMR 1015). Besides it is the duty of the court to apply correct law. Reliance is placed on judgment reported as **Government of N.W.F.P. and others versus Akbar Shah and others** (2010 SCMR 1408) wherein it has been held as under:

“..... It is settled principle of law that it is the duty and obligation of the Court to apply correct law on the well-known maxim that judge must wear all the laws of the country on the sleeve of his robe and failure of the counsel to properly advice is not a complete excuse in the matter as law laid down by this Court in Muhammad Sarwar’s case PLD 1969 SC 278.....”

The afore referred judgments lead us to the conclusion that not only it is the duty of the court to apply correct law but also to apply the law correctly.

14. Moreover, it is the decree and not the judgment that is to be executed. Reliance in this behalf is placed on the case titled **Rehmat Wazir and other vs. Sher Afzal and others** (2005 SCMR 668), wherein the Honourable Supreme Court has held as follows:

“It is a matter of settled law by this Court in Ghulam Muhammad’s case PLD 1963 SC 265 that not the judgment but the decree is executable and executed.”

It is also pertinent to mention that the connection of a decree drawn in a suit with the judgment passed therein is such that the judgment is the substratum on which the decree has its foundation and it cannot stand independent of the same and decree falls down when its substratum (i.e. the judgment) ceases to exist or hold the field, exception being the decree being upheld on different grounds. Reliance is placed on the case titled **Pakistan Industrial Credit and Investment Corporation Ltd. vs. Mahboob Industries Ltd. and 10 others** (PLD 1984 Kar 82), wherein the Sindh High Court while referring to Section 33 and Rule 7 of Order XX of CPC has held that where the judgment became null and void the decree that must follow the judgment shall also become void.

15. The aforesaid aspect of the matter gave rise to an anomaly, that although the decision of the Appellate Court had been upheld up to the Supreme Court, the decree sheet did not depict the matter in the terms actually decided by the appellate court whereby it had allowed the relief for possession and therefore, the same could not be executed to provide the relief of possession. This position had not emerged by any act or fault of the respondent/decreed holder, rather the fault had been on the part of the court to draw a proper decree sheet, which gave rise to need to seek correction of decree to bring it in conformity with the judgment.

16. It is settled by now that the act of court shall prejudice no one and where any court did not comply with a mandatory provision of

law or omitted to pass an order in the manner prescribed by law, then the litigant / parties could not be taxed, much less penalized for the act or commission of the court. Fault in such cases did lie with the court and not with the litigants and no litigant should suffer on such account unless he / they were contumaciously negligent and had deliberately not complied with mandatory provision of law. Reliance in this behalf is placed on **Muhammad Ijaz and another vs. Muhammad Shafi through L.Rs. (2016 SCMR 834)** wherein it has been laid down as under:

“17.....There is a well-known maxim “Actus Curiae Neminem Gravabit” (an act of the court shall prejudice no man) thus, where any court is found to have not complied with the mandatory provision of law or omitted to pass an order, required by law in the prescribed manner then, the litigants/parties cannot be taxed, much less penalized for the act or omission of the court. The fault in such cases does lie with the court and not the litigants and no litigant should suffer on that account unless he/they are contumaciously negligent and have deliberately not complied with a mandatory provision of law. (see PLD 1972 SC 69).....”

Reliance may also be placed on **Wasal Khan and others vs. Dr. Niaz Ali Khan (2016 SCMR 40)** wherein it has been held as under:

“Once it is established that initial error was committed by the learned Civil Judge then the blame cannot be shifted to the respondent/preemptor, in view of the well embedded principle that an act of the court shall prejudice none.”

In such like situation where injustice is cause due to act or omission of the court, the courts are required to remedy the defect that occurred as a consequence thereof. Reliance is placed on **Sherin and 4 others vs. Fazal Muhammad and 4 others** (1995 SCMR 584) wherein it has been held as under:

“13. We may refer here with advantage to the classic remarks of Lord Eldon in Pulteney v. Warren (1801) 6 Ves. 73, 92, quoted by Mecclean C.J., in Lakhan Chunder Sen vs. Madhu Sen (ILR 35 Calcutta 209):--

“If there be a principle, upon which Courts of justice ought to act without scruple, it is this; to relieve parties against

that injustice occasioned by its own acts or oversights at the instance of the party, against whom the relief is sought. That proportion is broadly laid down in some of the cases:” This view was approved of by the House of Lords in The East India Company v. Campion (1837) 11 Bli. (ICS.) 158.”

In the same strain are the observations of Lord Cairns, L.C. in Rodger v. The Comptoir d’Escompte de Paris (1871) 3 P.C. 465, quoted with the approval by Lord Carson in Jai Berham v. Kedar Nath (AIR 1922 PC 269):

“One of the first and highest duties of all Courts is to take care that the act of the Court does not cause injury to any of the suitors and when the expression ‘the act of the Court’, is used, it does not mean merely the act of the Primary Court, or of any intermediate Court of Appeal, but the act of the Court as a whole from the lowest Court which entertains jurisdiction over the matter up to the highest Court which finally disposes of the case:’

More recently a practical application of this rule, which perhaps is in somewhat close proximity of the case in hand is demonstrated in Hidayatullah v. Murad A. Khan (PLD 1972 SC 69), when this Court stepped into relieve the appellants before the Court, of the wrong, caused to them by the act of the trial Court.....”

17. As the fault was on part of the court, it was the duty of the court to provide a remedy for the same to secure ends of justice. For this purpose the court was empowered to invoke jurisdiction under the provisions of section 151, 152 and 153 of CPC reproduced below:

“151. Saving of inherent powers of Court. Nothing in this Code shall be deemed to limit or otherwise affect the inherent power of the Court to make such orders as may be necessary for the ends of justice or to prevent abuse of the process of the Court.

152. Amendment of judgments, decrees or orders. Clerical or arithmetical mistakes in judgments, decrees or orders or errors arising therein from any accidental slip or omission may at any time be corrected by the Court either on its own motion or on the application of any of the parties.

153. General power to amend. The Court may at any time, and on such terms as to costs or otherwise as it may think fit, amend any defect or error in any proceeding in a suit; and all necessary amendments shall be made for the purpose of determining the real question or issue raised by or depending on such proceedings.”

18. Section 152 of CPC provides for correction of a decree, at any stage, if it suffers from any clerical or arithmetical mistakes arising from any accidental slip or omission, which may be done either on its own motion or on the application of any of the parties. Section 153 of CPC authorizes the court, at any time, to amend any defect or error in proceedings in a suit for the purpose of determining the real question or issue raised by or depending on such proceedings. Section 151 of the CPC provide the inherent power of the Court to make such orders as may be necessary for the ends of justice or to prevent abuse of the process of the Court. Thus the court was empowered under section 152 of CPC to correct the decree and furthermore, exercise powers under section 151 and 153 of CPC if any of the defects could not have been addressed and remedied under the exercise of powers provided under section 152 CPC alone as it is settled by now that the provision of section 152 CPC for correction of decree is not the sole remedy available to the parties as the said section does not curtail any other remedy or exercise of powers under the law. For this purpose reliance may be placed on the principles laid down in the case titled **Ghulam Muhammad vs. Sultan Mahmud and others (PLD 1963 SC 265)**, wherein the Court while referring to the matter where the decree was not in conformity with the judgment, held as under:

“It is suggested that the sole remedy open to the appellant was by way of amendment of previous decree under section 152 of the Civil Procedure Code. It is also pointed out that the High Court could have suo motu amended the decree so as to make it conform to the judgment. This is true, but it does not follow that the appellant, if he failed to resort to that remedy, had no other remedy left at all. He was not bound to apply under section 152, C.P.C. for the correction of decree. He could treat it as a declaratory decree alone and then base a suit for ejectment on it against the respondents, who after the date of that decree occupied the position of trespasser. The two remedies were concurrently open to him and we have not been shown any provision of law or referred to any principle, which could stand

in the way of a suit for ejectment being brought in circumstances.”

19. The next question that requires to be addressed is that whether the court could exercise the power to amend the decree at belated stage. It is observed that decree was passed on 15.05.1995. Application for correcting the same was filed after 13 years on 30.09.2008 and the amendment was allowed vide impugned order dated 17.04.2010. The power under section 152 of CPC could be exercised at any stage, on the application of any party as well as on its own motion by the court. Where a court can exercise a power of its own motion (i.e. suo motu), it matters not whether the said power was exercised after the limitation period prescribed by law for a party to the proceedings to invoke the said jurisdiction because rules of limitation are ordinarily not applicable to acts which the court can perform by exercising its suo motu powers. For this purpose reliance is placed on the case reported as **Province of Punjab through Collector, Toba Tek Singh and others vs. Muhammad Farooq and others** (2012 SCMR 1942) wherein it has been held that Limitation period of 90 days for filing revision application was relevant only when the same was filed by person or party to the proceedings but such impediment was non-existent when court itself exercised the power of revision under section 115(1) of CPC and **Hafeez Ahmad and others vs. Civil Judge, Lahore and others** (PLD 2012 SC 400) wherein it has been held that Revisional Court, if seized of a revision petition either filed beyond prescribed period or suffering from procedural lapses but satisfying conditions for exercise of its suo motu jurisdiction, could treat such petition as an information to correct errors of jurisdiction committed by subordinate court. Proper place of procedure would be to provide stepping stones and not stumbling blocks in way of administration of justice. If such suo motu revisional

jurisdiction was allowed to go into spiral of technicalities and fetters of limitation, then purpose behind conferring same on such courts would not only be defeated, but words providing therefor would be reduced to dead letters. Revisional court would fail in its duty if it dismissed revision petition on technical grounds despite finding an illegality or material irregularity in impugned judgment, and **Khurshid Zaman Khan and others vs. Mukhtar Ahmad Butt** (1999 SCMR 1007) wherein it has been held that when, under any provision of law, the revisional Authority is conferred the power to exercise its revisional jurisdiction of its own motion at any time and also gives an aggrieved party the right to move the revisional Authority after expiry of the limitation period, it would be open to the revisional Authority to dismiss the revision on the ground that it is barred by time but in case the revisional Authority is of the view that the case calls for interference, such Authority may then exercise its suo motu powers, which it could exercise any time, and take necessary action in accordance with law.

From the above case laws it is clear that limitation was not treated as a hindrance for exercising suo motu revisional jurisdiction of the court to remedy jurisdictional defect in judgments and decrees passed by the Courts below. Same principle would be applicable to powers vested under Section 152 CPC especially when the court is to remedy a defect that occurred due to its own fault, act or omission as the power under section 152 could be exercised at any stage as is mandated by the section itself, therefore, filing an application at a belated stage could not be held as an impediment to correct/amend the decree to bring the same in conformity with the judgment as per law.

20. The next question that needs to be addressed is that whether the decree of the appellate court could be amended after it had been upheld by this court and also the Honourable Supreme Court. As the

power to amend the decree could be exercised at any stage, the same could even be exercised after the said decree had been upheld by superior courts, unless the said decree is set-aside, varied or upheld by a judgment whereby the decree is ordered to be passed in terms other than the terms in which judgment was passed by the court. In the present case, this Court and the Hon'ble Supreme Court refused to interfere in the findings of the appellate court, which attained finality and both the judgment and decree in terms passed by the appellate court were upheld. The appellants have not been able to point out that the relief provided in the judgment of the appellate court had been set-aside or modified to exclude the relief of possession, therefore, this argument that the decree sheet being upheld could not be used as a ground to set aside the order of correction of the decree sheet and it is held that the appellate court was fully empowered and justified to correct the decree sheet and bring the same in conformity with the judgment to provide relief of possession which power has been exercised in accordance with law and no illegality is apparent on the record. The impugned order being well founded warrants no interference.

21. For what has been discussed above, this appeal being devoid of any merit stands **dismissed**.

(Muzamil Akhtar Shabir)
Judge

Naveed

Approved for reporting